

R K Khola vs Space Applications Centre,Isro on 14 September, 2020

(CAT/AHMEDABAD BENCH/OA/397/2018)

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CENTRAL ADMINISTRATIVE TRIBUNAL
AHMEDABAD BENCH, AHMEDABAD
Original Application No.397 of 2018

This the 14th day of September , 2020

Reserved on: 01.09.2020
Pronounced on:14.09.2020

CORAM :
HON'BLE SHRI JAYESH V BHAIRAVIA, MEMBER (J)
HONBLE DR A K DUBEY, MEMBER (A)

Dr R K Khola,
Age : 76 years, S/o. Late Shri Murlidhar,
B-9, Avani Rowhouses,
Near Satellite Towers,
Ahmedabad - 380 015.

... Applicant

In person

v/s

- 1 Union of India (notice to be served through)
The Secretary, Department of Space,
Antariksh Bhawan, New BEL Road,
Bangalore - 560 231.
- 2 The Secretary, Department of Space,
Antariksh Bhawan, New BEL Road,
Bangalore - 560 231.
- 3 The Director,
Space Application Centre,
Ambawadi Vistar, Ahmedabad - 380 015.

... Respondents

By Advocate Ms R R Patel

ORDER (ORAL)

Per Dr A K Dubey, Member (A) 1 By way of OA 397/2018, the applicant seeks to declare the OM dated 18.01.1994 as arbitrary and contradictory to statutory rule 30 of CCS (Pension) Rules, 1972 and violative of Art. 14 of The Constitution of India. The applicant mainly seeks to add one year and nine months of service to the qualifying service of the applicant with consequential benefits including revising his pension and by way of interim relief he has prayed for a direction to

respondents to provide the details of all the Scientists/Engineers of all the Centres of ISRO and DOS who were granted benefits under DOS dated 18.01.1994; (i) Names, qualifications and designation of all the Scientists/Engineers, (ii) Proceedings of all the committees who had granted benefits to all the Scientists/Engineers, (iii) The period of benefits of addition to their qualifying service given in case of each Scientist/Engineer, (iv) To provide the details of amount by which the pension of each Scientist/Engineer was increased by the implementation of OM dated 18.01.1004 and (v) To direct the Director, VSSC for not maintaining records of all the Scientists/Engineers who had been benefitted and by which huge amount of public money has been spent in increasing their pension.

2 Respondents have contended in their reply that the order dated 18.01.1994 was issued with prior approval of Government of India and therefore it is neither illegal nor ultra virus or infirm and therefore, the second relief to recount his service on this ground was inadmissible. Respondents have also stated that applicant had joined ISRO as Scientist/Engineer SC on 01.03.1971 for which the minimum qualification was only B.Sc./B.Tech as per the recruitment rules. Respondents have contended that mere possession of higher qualification at the time of recruitment does not make one eligible for certain benefit under Rule 30 of CCS (Pension) Rules; Vide order dated 18.01.1994 this benefit under CCS (Pension) Rules is permissible to Scientists/Engineers who were recruited at the level of Scientist/Engineer SD and above. The Provisions of the Rule 30 of CCS (Pension) Rules 1972 is applicable for the Scientific/technical employees of DOS/ISRO who were directly recruited at the level of Scientist/Engineer SD and above. Since the applicant was recruited at level of Scientist/Engineer - SC, he was not eligible for addition of qualifying service in terms of OM dated 18.01.1994. 3 We have carefully gone through the records and examined the papers placed before us. We do not find any ambiguity either in the OM dated 18.01.1994 or in the provisions of Rule 30 of CCS (Pension) Rules 1972. Records and documents clearly show that the applicant was recruited as Scientist/Engineer SC, for which the essential qualification was prescribed in the recruitment rules for Scientific and Technical staff. Merely having higher degree per se does not confer upon him any entitlement to the benefits claimed. Similarly, we do not find the applicant's request for calling for other records of any help in this case; even otherwise, he may obtain information under RTI Act if permissible there. Hence this part of his prayer abates. After carefully going through all the records and hearing the applicant in person and the counsel for respondent, we find that OA lacks merit and applicant has not been able to establish any infringement of his right or entitlement in this regard. Accordingly OA is dismissed.

(Dr A K Dubey)
Member (A)

(Jayesh V Bhairavia)
Member (J)

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